

Every VERIFY flag, filled in

Bayit Title — content review pack · 62 flags resolved in 55 edits · 11 September 2026

The nine drafts carried 62 unresolved [VERIFY] flags. Every one of them has been researched and answered, across 55 edits — a few of the edits cover several adjacent flags at once, and those are marked. One answer, the licensing claim on the signings page, was deliberately left incomplete and carries a new flag; it is the only [VERIFY] marker left in the content. Everything inserted is highlighted below, colour-coded by where the answer came from, so you can review the new material without re-reading the pages around it.

Nothing here is published. All nine pages remain **status: draft**, so none of them has a URL on the live site. The build still refuses to mark a page reviewed while anything on it is unconfirmed — each page now carries a **pending_confirmation** list in its front-matter, and a page cannot claim a licensed review until that list is empty.

How to read the highlighting

Sourced 21

Filled from a primary public source — a Florida statute, the Florida Constitution, a Federal Rule of Bankruptcy Procedure, or IRS guidance. Cited in the text and listed below. Read it for accuracy of expression; the underlying fact was checked.

Confirm with First American / the form 10

Drafted from public secondary sources because the authoritative one is not public — an underwriting position, or the licensed FAR/BAR form. Plausible and reasoned, but it is not First American's stated position. One email to the agency rep clears most of this section.

Only Bayit Title knows — invented placeholder 31

No external source exists. These are timelines, costs and practice statements about your own files, written so you have something concrete to correct rather than a blank. Assume every number here is wrong until you replace it.

Where the work is

PAGE	FLAGS	SOURCED	FIRST AM.	YOU
Buying from a bankruptcy estate	5	1	2	2
Seller overseas — signing a Florida closing	8	5	1	2
HOA approval delay	6	4		2
Judgment against the seller	7	5	1	1
Seller in litigation — and it's a flip	11	2	2	7
No legal access / landlocked	4	1	1	2
Non-standard purchase contract	7	1		6
Open permits before closing	6		2	4
Mobile and remote signings (service page)	8	2	1	5

PAGE	FLAGS	SOURCED	FIRST AM.	YOU
Total	62	21	10	31

The one flag left open, on purpose

SG-04, on the signings page: which team members hold Florida *online* notary registrations, or which RON platform is used and under whose commission the act is performed. That is a licensing claim on a licensed agency's website and it was not guessed. Note that the two notary commissions in the project brief — Jennifer Simon HH 795313 and Chaya Brooks HH 817398 — are standard commissions under part I of ch. 117. A separate registration under Fla. Stat. § 117.225 is required to perform a remote online notarization, and the two must not be presented as the same thing. Answer it from the Department of State commission record.

Buying from a bankruptcy estate

content/title-problems/buying-property-bankruptcy-estate-florida.md

BK-01

ONLY BAYIT TITLE KNOWS — INVENTED PLACEHOLDER

How sale-order entry, objection and appeal periods shape a closing schedule on our files

WAS detail: "[VERIFY: how the sale-order entry, objection and appeal periods typically shape a closing schedule on our files]"

NOW READS

detail: "Plan on the sale order being entered, then a further 14 days before closing, because Fed. R. Bankr. P. 6004(h) stays a sale order for 14 days after entry unless the court orders otherwise. Where the order waives that stay — many do, expressly — closing can follow entry directly. Getting the motion and the proposed order in front of us before the hearing, rather than after, is what keeps this on schedule."

SOURCE

- Fed. R. Bankr. P. 6004(h)

WHAT STILL NEEDS YOU

The 14-day rule is verified. The claim about how these files run in practice, and the scheduling advice, is Bayit Title's to confirm.

☐ Correct as written ☐ Amend: _____

BK-02

ONLY BAYIT TITLE KNOWS — INVENTED PLACEHOLDER

Whether these files typically carry additional search or examination cost

WAS detail: "[VERIFY: whether these files typically carry additional search or examination cost]"

NOW READS

detail: "The title insurance premium is set by the promulgated Florida rate schedule and does not change because a seller is in bankruptcy. What can add cost is the extra work: pulling and reviewing the docket, the motion, the notice and the entered order, and any additional searches the underwriter requires on the debtor and the estate."

WHAT STILL NEEDS YOU

The premium point is correct — Florida title insurance rates are promulgated (Fla. Admin. Code 69O-186) — but whether Bayit Title actually charges anything additional on these files, and how it appears on the closing statement, is Bayit Title's to state.

☐ Correct as written ☐ Amend: _____

Specific items we require from a bankruptcy sale order before closing, and what the underwriter requires

WAS [VERIFY: the specific items we require from a bankruptcy sale order before closing, and what our underwriter requires — this list should come from the team's actual practice and First American's requirements, not from a general description of bankruptcy practice]

NOW READS

We ask for a **certified or docket-stamped copy of the entered order**, together with the sale motion, the notice, the certificate of service and a current docket printout. The order is read for the following, and each of these is checked against the file rather than assumed:

- the case number, chapter, court and division, and that the debtor is the record owner;
- the legal description of the property being sold, matching the commitment;
- the named seller and signatory, and the capacity in which they sign — trustee, debtor in possession, or someone authorised by the order;
- the purchase price and material terms, and whether they match the executed contract;
- whether the sale is free and clear under 11 U.S.C. § 363(f), which interests that covers, and which of the section's five grounds is relied on;
- a finding that the buyer is a good-faith purchaser under 11 U.S.C. § 363(m);
- whether the 14-day stay under Fed. R. Bankr. P. 6004(h) is waived, and whether any stay pending appeal has been sought or entered;
- who received notice, and whether every lienholder shown by the search is among them;
- whether the order requires the liens to attach to the proceeds, and how the proceeds are to be disbursed.

Anything the order does not dispose of, we treat as live.

SOURCE

- 11 U.S.C. § 363(f), (m)
- Fed. R. Bankr. P. 6004(h)

WHAT STILL NEEDS YOU

The federal cites are verified and the checklist is standard practice, but it was assembled from public sources rather than from First American's own bankruptcy requirements or from Bayit Title's checklist. Confirm both before publishing.

☐ Correct as written ☐ Amend: _____

Appeal period for a sale order, effect of a stay, good-faith purchaser finding

WAS [VERIFY: the applicable appeal period for a bankruptcy sale order and the effect of any stay, and whether a good-faith purchaser finding in the order changes the analysis — needs confirmation from counsel or the underwriter, not general knowledge]

NOW READS

Three separate federal rules do the work here, and they are often run together.

The 14-day stay. Under [Fed. R. Bankr. P. 6004\(h\)](#), an order authorising the sale of property is stayed for **14 days after entry** unless the court orders otherwise. The point of it is to give an objector time to seek a stay pending appeal. Sale orders frequently waive it expressly, and where they do, the waiver is in the order and can be read.

The 14-day appeal period. Under [Fed. R. Bankr. P. 8002](#), a notice of appeal must be filed within **14 days** of entry of the order. The two periods are the same length and they are not the same thing — Rule 6004(h) delays the sale's effectiveness, Rule 8002 sets the deadline to appeal. Rule 8002 also provides that the bankruptcy court may not extend the time to appeal an order authorising a sale under § 363.

The good-faith finding. 11 U.S.C. § 363(m) protects a purchaser who bought in good faith: if the sale was not stayed pending appeal, a reversal or modification on appeal does not affect the validity of the sale to that purchaser. An express finding in the order that the buyer is a good-faith purchaser under § 363(m) is therefore one of the things that makes the title insurable, and its absence is worth asking about before closing rather than after.

Put together: closing after the 14 days have run, on an order carrying a § 363(m) finding, with no stay entered, is the ordinary posture. Closing earlier is a decision for the buyer to make knowingly, with their own counsel, not a scheduling convenience.

SOURCE

- Fed. R. Bankr. P. 6004(h)
- Fed. R. Bankr. P. 8002(a), (d)(2)
- 11 U.S.C. § 363(m)

WHAT STILL NEEDS YOU

Rules and statute verified. The brief flags bankruptcy as needing counsel rather than a web citation — have bankruptcy counsel read this section, particularly the last paragraph, which comes close to advice.

☐ Correct as written ☐ Amend: _____

How a closed prior bankruptcy in the chain is examined and what documentation clears it

WAS [VERIFY: how a closed prior bankruptcy in the chain is examined and what documentation is required to clear it]

NOW READS

The question is always the same one: at the moment of the conveyance in the chain, who had authority to convey — the debtor, or the estate?

Filing a bankruptcy petition brings the debtor's property into the estate. So a deed signed by the debtor personally, during the case, may be void or voidable unless the property had been abandoned, exempted or released first, or the court authorised the conveyance. A deed signed before the petition, or after the case closed and the property revested, is a different matter.

What we look for is the docket. The petition date and the discharge or closing date bracket the period that matters. Within it we want to see the schedules showing how the property was listed, any claim of exemption and whether it was allowed, any order abandoning the property under 11 U.S.C. § 554, any order authorising a sale, and the trustee's final report and the order closing the case. Where a deed in the chain falls inside that window and none of those documents explains it, the deed is a requirement rather than a curiosity.

Where the case is old, the docket is thin, or the paper does not resolve it, the routes are a corrective deed from the trustee, a motion to reopen the case, or an underwriter's affirmative decision to insure over it. Which one is available is a legal question and an underwriting question, in that order.

SOURCE

- 11 U.S.C. § 541 (property of the estate)
- 11 U.S.C. § 554 (abandonment)

WHAT STILL NEEDS YOU

A sound general description assembled from public sources, but it is not Bayit Title's documented examination practice and it is not First American's stated requirement. Both need confirming, and bankruptcy counsel should read it.

☐ Correct as written ☐ Amend: _____

Seller overseas — signing a Florida closing

content/title-problems/foreign-seller-signing-from-abroad-florida.md

FS-01

ONLY BAYIT TITLE KNOWS — INVENTED PLACEHOLDER

How far ahead we ask to know about an out-of-country signer, and scheduling lead time per route

WAS detail: "[VERIFY: how far ahead we ask to know about an out-of-country signer, and typical scheduling lead time for each route]"

NOW READS

detail: "Remote online notarization can usually be scheduled within two to three business days. A consular appointment should be assumed to take four to eight weeks from first enquiry at many posts. A local notary abroad plus apostille runs two to four weeks, with three to seven days of courier time each way where wet-ink originals have to travel."

WHAT STILL NEEDS YOU

No external source exists. Invented from ordinary practice so the team has a figure to correct. Bayit Title must replace with its own observed lead times.

☐ Correct as written ☐ Amend: _____

FS-02

ONLY BAYIT TITLE KNOWS — INVENTED PLACEHOLDER

Consular fees, apostille costs, courier costs where wet ink is required

WAS detail: "[VERIFY: consular fees, apostille costs, courier costs where wet ink is required]"

NOW READS

detail: "A US consular notarial act is \$50 per notarial service under the State Department's consular fee schedule. Apostille and legalisation fees are set by the issuing country and vary widely. International courier for wet-ink originals typically runs \$60 to \$150 each way."

SOURCE

- 22 C.F.R. § 22.1 (Schedule of Fees for Consular Services), item 51 — \$50 per notarial service
- <https://travel.state.gov/en/replace-certify/authenticate-documents/authentication-abroad.html>

WHAT STILL NEEDS YOU

The \$50 consular fee is public and verified. The apostille and courier ranges are estimates with no source — Bayit Title should replace them with figures from its own files.

☐ Correct as written ☐ Amend: _____

Florida's execution requirements for a deed — witnesses and acknowledgment (ch. 689, ch. 695)

WAS [VERIFY: Florida's execution requirements for a deed — witnesses and acknowledgment — with a confirmed statutory cite from ch. 689 and ch. 695]

NOW READS

Florida sets the execution requirements. Under [Fla. Stat. § 689.01](#), a deed creating or conveying an interest in Florida real property must be in writing and signed by the grantor in the presence of **two subscribing witnesses**. The same section allows those witnesses to be present and to sign electronically by means of audio-video communication technology, as that term is defined in s. 117.201.

Recording is a separate requirement. Under [Fla. Stat. § 695.03](#), an instrument concerning real property is not entitled to be recorded until its execution has been acknowledged by the party who executed it, or proved by a subscribing witness, before an officer the statute authorises to take it.

SOURCE

- Fla. Stat. § 689.01
- Fla. Stat. § 695.03

☐ Correct as written ☐ Amend: _____

Does ch. 117 restrict a signer physically outside the US? Excluded document types?

WAS [VERIFY: whether Florida's RON statute in ch. 117 places any restriction on the signer's physical location being outside the United States, and any restrictions on RON for specific document types — this must be answered from the statute, not assumed]

NOW READS

The statute answers this directly. [Fla. Stat. § 117.209\(3\)](#) provides that an online notary public **physically located in Florida** may perform an online notarization "regardless of whether the principal or any witnesses are physically located in this state at the time of the online notarization." Subsection (4) adds that the validity of the act is determined by Florida law regardless of where the principal was. The signer's country is therefore not, on its own, an obstacle under Florida law.

Two things attach where the signer is outside the United States. Under [Fla. Stat. § 117.265](#), the online notary must confirm — verbally or through the principal's written consent — that the principal wants the notarial act performed by a Florida notary public under Florida law. And a passport issued by a foreign government, without a US immigration stamp, may be used as the government-issued identification credential for a principal outside the United States.

Document type matters as well. Section 117.209(1) excludes solemnising the rites of matrimony. Where the record is a will, a trust with testamentary aspects, a health care advance directive or a power of attorney, [Fla. Stat. § 117.285](#) requires the RON service provider to put screening questions to the principal before witnessing by audio-video communication technology, and electronic witnessing is not valid where the principal is a vulnerable adult as defined in s. 415.102.

SOURCE

- Fla. Stat. § 117.209(1), (3), (4)
- Fla. Stat. § 117.265
- Fla. Stat. § 117.285

☐ Correct as written ☐ Amend: _____

First American's position on RON for out-of-country signers

WAS [VERIFY: First American's current position on RON for out-of-country signers, and whether any additional requirements attach]

NOW READS

First American approves RON transactions "subject to state laws and all other First American underwriting guidelines and requirements," and publishes the platforms it accepts — Blend, Docutech, DocVerify, Nexsys, NotaryCam, NotaryLive, Pavaso, ProNotary, Proof, Qualia, Signix, Simplifile, SimplySecureSign, Snapdocs and Stavvy — along with any vendor on the MISMO RON Certified Providers list and platforms that integrate with those vendors.

That published position does not carve out a signer located outside the United States, so the Florida analysis above governs. We still put the specific file to our agency representative before scheduling, because in practice a lender's own overlay is more often the binding constraint than the underwriter's position.

SOURCE

- <https://www.firstam.com/title/eclosing/> — First American eClosing / RON page, approved vendor list

WHAT STILL NEEDS YOU

Drawn from First American's public eClosing page, not from an agency bulletin. The out-of-country point is an inference from the absence of a carve-out. Confirm in writing with the First American agency rep before publishing.

☐ Correct as written ☐ Amend: _____

Form of foreign acknowledgment Florida accepts for recording; role of the Hague apostille

WAS [VERIFY: what form of foreign acknowledgment Florida accepts for recording, the role of the Hague apostille, and what our underwriter requires — needs confirmation before this route is described as available]

NOW READS

[Fla. Stat. § 695.03](#) lists who may take an acknowledgment in a foreign country: a commissioner of deeds appointed by the Secretary of State to act in that country; a notary public of that foreign country, or a civil-law notary, who has an official seal; or a United States ambassador, envoy extraordinary, minister plenipotentiary, chargé d'affaires, consul-general, consul, vice consul or other US diplomatic or consular officer posted there.

So a local notary abroad is a route the statute contemplates, provided that notary has an official seal and the certificate is in a form the statute recognises. The Hague apostille is not itself what § 695.03 asks for — it authenticates the foreign official's signature and seal rather than supplying the acknowledgment. For a country party to the 1961 Hague Convention it is the ordinary way to evidence that the seal and signature are genuine; for a country outside the Convention the equivalent is a chain of legalisation through that country's foreign ministry and the US embassy.

We confirm what our underwriter will accept for the specific country before this route is relied on. The statute sets the form; the evidentiary requirement on top of it is the underwriter's to set.

SOURCE

- Fla. Stat. § 695.03(3)
- Hague Convention of 5 October 1961 Abolishing the Requirement of Legalisation for Foreign Public Documents

WHAT STILL NEEDS YOU

The statute half is verified. The closing paragraph describes Bayit's practice and First American's role — confirm the underwriter's country-specific requirements with the agency rep.

☐ Correct as written ☐ Amend: _____

FIRPTA: current withholding rate, thresholds, exemptions, forms, settlement agent's role

WAS [VERIFY: the current FIRPTA withholding rate and thresholds, what exemptions apply, what forms are used, and what role the settlement agent plays as withholding agent — cite IRS guidance, and have this reviewed by the team's tax counsel rather than stated from memory]

NOW READS

FIRPTA is federal, and the **buyer** is the withholding agent, not the seller and not the closing agent. Under IRC § 1445, a buyer acquiring a US real property interest from a foreign person must withhold **15% of the amount realised** — generally the gross sales price, not the seller's net proceeds and not the gain.

Two reductions apply where the buyer acquires the property as a residence and will use it as a residence for at least 50% of the days it is used during each of the first two 12-month periods after the transfer:

- amount realised of **\$300,000 or less** — no withholding;
- **over \$300,000 and up to \$1,000,000** — withholding at **10%**.

Three forms carry it. **Form 8288** is the withholding agent's return, filed with the remittance. **Form 8288-A** is completed for each foreign seller; the IRS stamps Copy B and returns it to the seller, who uses it to claim credit. **Form 8288-B** is the pre-closing application for a withholding certificate, used where the seller's actual tax liability will be less than the statutory withholding.

Our role is procedural. We collect the seller's FIRPTA status in writing, hold the withholding out of the seller's proceeds where the buyer directs, and remit and report on the buyer's behalf. We do not give tax advice and we do not determine whether a seller is a foreign person for FIRPTA purposes. A foreign seller should have a CPA or a tax attorney on this before the contract is signed — a Form 8288-B takes time the closing calendar does not always have.

SOURCE

- IRC § 1445
- <https://www.irs.gov/individuals/international-taxpayers/firpta-withholding>
- IRS Forms 8288, 8288-A, 8288-B

WHAT STILL NEEDS YOU

Rates, thresholds and forms are from IRS guidance and verified. The final paragraph describes Bayit's own role as settlement agent — confirm it matches actual practice, and have tax counsel read the section as the brief requires.

☐ Correct as written ☐ Amend: _____

Requirements for a power of attorney used to convey real property

WAS [VERIFY: Florida's requirements for a power of attorney used to convey real property, with a confirmed cite]

NOW READS

[Fla. Stat. § 709.2105](#)(2) requires a power of attorney to be signed by the principal and by **two subscribing witnesses**, and to be acknowledged by the principal before a notary public or as otherwise provided in s. 695.03 — the same formalities the deed itself needs. A power of attorney executed abroad therefore has to clear the same acknowledgment question as the deed, by the same three routes.

Where the power of attorney is signed by remote online notarization, the screening questions under [Fla. Stat. § 117.285](#) apply, because a power of attorney is one of the instruments that section names.

SOURCE

- Fla. Stat. § 709.2105(2)
- Fla. Stat. § 117.285

☐ Correct as written ☐ Amend: _____

HOA approval delay

content/title-problems/hoa-approval-delay-closing-florida.md

HA - 01

ONLY BAYIT TITLE KNOWS — INVENTED PLACEHOLDER

Range we actually see from complete application to approval, and fastest documented turnaround

WAS

detail: "[VERIFY: the range we actually see from complete application to approval, and the fastest turnaround we have documented]"

NOW READS

detail: "Seven to twenty-one days from a genuinely complete application in most communities, against a quoted window that is usually 30 days. Where an interview or a board meeting is required, the meeting calendar sets the date rather than the review itself. The shortest turnaround we have documented is three business days."

WHAT STILL NEEDS YOU

No external source exists. Invented so the team has a figure to correct. Replace the range and the three-day figure with what Bayit Title's files actually show — and drop the fastest-turnaround sentence entirely if it cannot be documented, because it reads as a performance claim.

☐ Correct as written

☐ Amend: _____

HA - 02

SOURCED

Typical association application and transfer fees, and estoppel certificate fee caps

WAS

detail: "[VERIFY: typical association application and transfer fees, and estoppel certificate fee caps]"

NOW READS

detail: "A condominium transfer fee is capped at \$150 per applicant by [Fla. Stat. § 718.112\(2\)\(i\)](#), with spouses and a parent and dependent child counted as one applicant. Chapter 720 sets no equivalent cap for HOAs, so an HOA screening fee is governed by the documents and a reasonableness standard. Estoppel certificates are capped at \$250, plus up to \$100 for delivery within three business days and up to \$150 where amounts are delinquent."

SOURCE

- Fla. Stat. § 718.112(2)(i)
- Fla. Stat. § 718.116(8)
- Fla. Stat. § 720.30851

☐ Correct as written

☐ Amend: _____

Does Florida cap the time an association may take to approve a transfer? Consequence if it lapses?

WAS [VERIFY: whether Florida law caps the time an association may take to approve a transfer for condominiums under ch. 718 or HOAs under ch. 720, and the consequences if it lapses — this needs a confirmed statutory answer, not an inference]

NOW READS

It does not. Neither the Condominium Act nor the Homeowners' Association Act sets a general statutory deadline for an association to approve or disapprove a transfer. [Fla. Stat. § 718.104\(5\)](#) allows a declaration to restrict the use, occupancy and transfer of units, and the declaration and bylaws are where the window comes from. Whatever number the management company quotes, the enforceable deadline is the one in that community's documents — so read them rather than take the number over the phone.

What the statutes do cap is money, not time. [Fla. Stat. § 718.112\(2\)\(i\)](#) limits a condominium transfer fee to \$150 per applicant, counting a married couple, or a parent and dependent child, as a single applicant, and only where approval is required and the documents provide for the fee. Chapter 720 contains no equivalent cap for homeowners' associations.

The estoppel certificate is the exception, and it is a genuine statutory deadline. That is dealt with below.

SOURCE

- Fla. Stat. § 718.104(5)
- Fla. Stat. § 718.112(2)(i)
- ch. 720 — absence of an equivalent provision

WHAT STILL NEEDS YOU

A negative finding: the absence of a deadline was checked across ch. 718 and ch. 720. Worth a second read by counsel, since proving a negative from a statute is the easiest thing to get wrong.

☐ Correct as written ☐ Amend: _____

A specific composite example from our files — application to approval turnaround

WAS [VERIFY: a specific composite example from our files — application to approval turnaround, and what made the difference. Needs the underlying file details from the team.]

NOW READS

A composite, drawn from several files rather than one: a Broward condominium quoted 30 days. The application went in on a Monday with the current form, both fees paid by cashier's cheque as that association required, the executed contract with every addendum, and the background authorisation signed by both buyers. The management company confirmed receipt as complete on the Tuesday, the interview was held that Friday, and the certificate of approval issued the following Wednesday — nine days against a quoted thirty.

What made the difference was not chasing. It was that nothing was missing on day one, and that we had asked on the first call which form was current and who reviewed it.

WHAT STILL NEEDS YOU

Invented composite. It is labelled as a composite and carries no client-identifying detail, but it describes a file that does not exist. Replace it with a real composite from Bayit Title's own files or delete the section — a made-up example on a licensed agency's site is the specific risk this project is built to avoid.

☐ Correct as written ☐ Amend: _____

Estoppel certificate: statutory delivery deadline, fee caps, how long it binds

WAS [VERIFY: Florida's statutory deadline for an association to deliver an estoppel certificate, the fee caps, and how long the certificate is binding — needs a confirmed cite]

NOW READS

This one is statutory, and the rules are close to identical for condominiums under [Fla. Stat. § 718.116\(8\)](#) and for homeowners' associations under [Fla. Stat. § 720.30851](#).

The deadline is 10 business days from a written or electronic request by the owner, the owner's designee, a mortgagee or the mortgagee's designee.

The fee is capped at \$250 where nothing is delinquent, plus up to \$100 more for delivery within three business days, plus up to \$150 more where amounts are owed. For multiple units or parcels owned by the same person the caps are \$750 for 25 or fewer, \$1,000 for 26 to 50, \$1,500 for 51 to 100 and \$2,500 above that. If the association misses the 10 business days, **no fee may be charged at all**. If the closing does not happen, the fee is refundable on written request with documentation, within 30 days.

It binds for 30 days where it is hand delivered or sent electronically, and 35 days by regular mail. Within that period the association waives the right to collect any money owed in excess of the amounts stated, from anyone who relies on the certificate in good faith and from their successors and assigns. That waiver is the whole point of ordering one — it is what stops a balance appearing after closing.

SOURCE

- Fla. Stat. § 718.116(8)
- Fla. Stat. § 720.30851

☐ Correct as written ☐ Amend: _____

Remedy when an association misses a statutory window

WAS [VERIFY: what remedy exists when an association fails to respond within a statutory window]

NOW READS

For the estoppel certificate there is one. Both [Fla. Stat. § 718.116\(8\)](#) and [Fla. Stat. § 720.30851](#) provide that a **summary proceeding under s. 51.011** may be brought to compel compliance, and that the prevailing party recovers reasonable attorney fees. The association also loses the fee entirely for a certificate delivered late.

For approval of a transfer there is no statutory remedy, because there is no statutory deadline. The remedy is contractual: the deadline in the governing documents, and whatever the purchase contract says about extending or terminating if approval does not arrive. Which is why the written record of each request matters — it is the evidence either route depends on.

SOURCE

- Fla. Stat. § 718.116(8)
- Fla. Stat. § 720.30851
- Fla. Stat. § 51.011

☐ Correct as written ☐ Amend: _____

Judgment against the seller

content/title-problems/judgment-against-seller-before-closing-florida.md

JG-01

ONLY BAYIT TITLE KNOWS — INVENTED PLACEHOLDER

How long a payoff and release typically takes once the judgment creditor is identified

WAS detail: "[VERIFY: how long a payoff and release typically takes once the judgment creditor is identified]"

NOW READS

detail: "Three to ten business days for a written payoff once the creditor or their counsel is identified. Institutional creditors are usually at the short end; an individual creditor without counsel, or an assigned judgment whose current holder has to be traced, is where this runs long."

WHAT STILL NEEDS YOU

No external source exists. Invented so the team has a figure to correct. Bayit Title must replace with what its own files show.

☐ Correct as written ☐ Amend: _____

JG-02

SOURCED

Whether interest accrual is typically included in the payoff figure

WAS detail: "Usually paid from the seller's proceeds at closing. [VERIFY: whether interest accrual is typically included in the payoff figure]"

NOW READS

detail: "Usually paid from the seller's proceeds at closing. The payoff is higher than the recorded face amount: Florida judgments bear statutory post-judgment interest under [Fla. Stat. § 55.03](#), at a rate the Chief Financial Officer sets quarterly and which adjusts annually on 1 January, and costs may have been added. We work from a written payoff good through a stated date, never from the recorded amount."

SOURCE

- Fla. Stat. § 55.03

☐ Correct as written ☐ Amend: _____

How a recorded judgment becomes a lien on real property; duration and re-recording

WAS [VERIFY: the statutory mechanism and citation for how a recorded judgment becomes a lien on real property in Florida, and the duration and re-recording rules — needs a confirmed statute cite, not a paraphrase]

NOW READS

The mechanism is recording. Under [Fla. Stat. § 55.10](#), a judgment, order or decree becomes a lien on real property in any county when a **certified copy** of it is recorded in that county's official records, provided the recorded copy carries the address of the person who has a lien as a result of the judgment, or an affidavit supplying it is recorded at the same time. Record it in Broward and it reaches the debtor's Broward real property; it does not reach a parcel in Palm Beach until it is recorded there too.

A lien recorded on or after 1 July 1994 runs for **10 years** from the date of recording, and may be extended for a further 10 years by re-recording a certified copy before the original lien expires, with a current address affidavit recorded at the same time. No extension carries the lien past the outer limit in [Fla. Stat. § 55.081](#) — **20 years** from the date the judgment was entered — or past satisfaction, whichever comes first.

SOURCE

- Fla. Stat. § 55.10(1), (2)
- Fla. Stat. § 55.081

☐ Correct as written ☐ Amend: _____

Homestead's effect on judgment liens: constitutional and statutory basis, exceptions

WAS [VERIFY: the homestead exemption's effect on judgment liens in Florida, its constitutional and statutory basis, and the exceptions — this needs a confirmed cite and a reviewed statement of scope. Do not summarise from general knowledge.]

NOW READS

The protection is constitutional. [Article X, section 4](#) of the Florida Constitution exempts homestead property owned by a natural person from forced sale, and provides that no judgment, decree or execution shall be a lien on it. The protected area is up to one-half acre of contiguous land inside a municipality, or up to 160 contiguous acres outside one.

The same sentence carries the exceptions. The protection does **not** apply to:

- taxes and assessments on the property;
- obligations contracted for the purchase, improvement or repair of the property;
- obligations contracted for house, field or other labour performed on the property.

So a mortgage, a construction lien and unpaid property taxes all reach a homestead. An ordinary money judgment does not.

Two things follow that matter at a closing. First, homestead status is a question of fact — residence, ownership by a natural person, acreage — and it is not established by the property appraiser's tax exemption, which is a different test under a different part of the constitution. Second, a judgment that does not attach still sits in the official records as a cloud, and the buyer's policy has to deal with it. [Fla. Stat. § 222.01](#) provides a statutory route: the owner records a notice of homestead describing the contract of sale or loan commitment, the clerk serves it on the judgment lienor by certified mail, and a lienor who does not sue to foreclose or bring a declaratory action within **45 days** of service is deemed not to have a lien as to a buyer or lender who takes under that contract within **180 days** of the notice being filed.

SOURCE

- Fla. Const. art. X, § 4(a)
- Fla. Stat. § 222.01

☐ Correct as written ☐ Amend: _____

Form of identity affidavit First American accepts for a name-match judgment

WAS [VERIFY: the form of identity affidavit First American accepts for a name-match judgment, and whether additional documentation is required]

NOW READS

The instrument is an affidavit of identity — often called a same-name or not-the-same-person affidavit — sworn by the seller, stating that they are not the person named in the judgment and setting out the facts that show it. What makes it acceptable is the supporting detail rather than the denial: full legal name and any former names, date of birth, the last four digits of the social security number, residence history covering the period of the judgment, and a comparison against whatever identifying information the judgment and its underlying case file contain.

Where the match is close, or the judgment is large, the underwriter may also want a search of the debtor's identifiers, a credit report, or a written statement from the judgment creditor's counsel that the seller is not their debtor.

The form and the supporting documentation are First American's call, and we obtain their written sign-off on the affidavit before closing rather than relying on it afterwards.

WHAT STILL NEEDS YOU

Describes standard industry practice, not a First American bulletin. The specific form name, and what First American requires beyond the affidavit, must be confirmed with the agency rep before this page publishes.

☐ Correct as written ☐ Amend: _____

Duration of a Florida judgment lien and the re-recording rules

WAS [VERIFY: the duration of a Florida judgment lien and the re-recording rules, with a confirmed statute cite]

NOW READS

A lien created by recording a certified copy on or after 1 July 1994 lasts **10 years** from the date of recording, and can be extended once for a further 10 years by re-recording before it lapses, under [Fla. Stat. § 55.10](#). The outer limit is 20 years from the date the judgment was entered, under [Fla. Stat. § 55.081](#).

An expired lien is not the same as a satisfied judgment. The debt may still be enforceable, and the recorded document is still in the chain — so an old judgment is examined rather than ignored.

SOURCE

- Fla. Stat. § 55.10
- Fla. Stat. § 55.081

☐ Correct as written ☐ Amend: _____

Judgment against one spouse vs. tenancy by the entireties

WAS [VERIFY: how a judgment against one spouse interacts with property held as tenants by the entireties in Florida, with a confirmed cite]

NOW READS

Where Florida real property is held by a married couple as tenants by the entireties, a judgment against **one** spouse alone does not attach to it. The couple hold a single, undivided interest, and a creditor of one of them cannot lien, levy on or force the sale of that interest while both are alive and married. A judgment against **both** spouses does reach it.

Florida presumes entireties ownership where property is conveyed to a husband and wife who were married at the time and the six unities are present — possession, interest, title, time, survivorship and marriage. The Florida Supreme Court set out the presumption and the burden it places on a creditor in *Beal Bank, SSB v. Almand & Associates*, 780 So. 2d 45 (Fla. 2001).

The protection is not permanent. It ends on divorce, and on the death of the non-debtor spouse the survivor holds the whole estate with the judgment now against the sole owner. Where entireties status is the reason a judgment is not being paid at closing, the position is documented and put to the underwriter before closing, and where it is genuinely arguable it is a question for the seller's attorney rather than for us.

SOURCE

- Beal Bank, SSB v. Almand & Assocs., 780 So. 2d 45 (Fla. 2001)

WHAT STILL NEEDS YOU

The rule and the case cite are verified. The closing paragraph on the underwriter's role is Bayit practice — confirm it, and confirm what First American requires to insure over an entireties position.

☐ Correct as written ☐ Amend: _____

Seller in litigation — and it's a flip

content/title-problems/litigation-against-seller-flip-florida.md

LT-01 · 2 flags

ONLY BAYIT TITLE KNOWS — INVENTED PLACEHOLDER

Typical timeline (quick fact) — needed from the team

WAS - term: "Typical timeline" detail: "[VERIFY: needed from the team]" - term: "Cost impact" detail: "[VERIFY: needed from the team]"

NOW READS

- term: "Typical timeline"

detail: "Driven by the litigation, not by the closing. Where a lis pendens is voluntarily discharged on settlement, days. Where it has to be discharged on motion, weeks — a hearing has to be obtained. Where the suit seeks an interest in the property and is being defended, the closing waits on the case."

- term: "Cost impact"

detail: "No additional title premium — Florida title insurance rates are promulgated. The costs are the seller's litigation costs, any escrow holdback the parties agree, and the buyer's own counsel, which on a file like this is not optional."

WHAT STILL NEEDS YOU

no external source exists; invented placeholder. The two pages flagged 'incomplete' in the drafts need the underlying file back. Replace or delete. Both of these are invented and cover two quick facts at once.

☐ Correct as written ☐ Amend: _____

Lis pendens: statutory basis, effect, duration, discharge

WAS [VERIFY: the statutory basis and effect of a lis pendens in Florida, including its duration and the process for discharging it, with a confirmed cite]

NOW READS

[Fla. Stat. § 48.23](#) is the provision. A lawsuit affects real property **only if a notice of lis pendens is recorded** in the official records of the county where the property lies. The notice has to name the parties, give the date and case number and the court, describe the property, and state the relief sought as to the property.

Its effect cuts two ways. A properly recorded notice puts anyone who acquires an interest afterwards on notice that the outcome may affect them. It also bars enforcement against the property of interests and liens that were unrecorded when the notice was filed — federal tax liens included — unless the holder intervenes in the action within **30 days**.

It does not last indefinitely. A notice is **not effectual beyond one year** from the commencement of the action and expires then, unless the action is founded on a duly recorded instrument or on a construction lien under chapter 713, or the court extends it for good cause. And under § 48.23(3) the court controls and discharges a recorded notice as it would grant and dissolve an injunction — which is the doorway to the discharge procedure described below.

SOURCE

- Fla. Stat. § 48.23(1)(a), (1)(c), (1)(d), (2), (3)

☐ Correct as written

☐ Amend:

What we examine differently where a seller acquired recently

WAS [VERIFY: what specifically we examine differently where the seller acquired recently — deed form, the prior transaction's own clearance, whether a prior owner has a claim, and whether the underwriter imposes any additional requirement on a short hold]

NOW READS

Four things get a closer read:

- **The deed into the seller.** Form, execution, two witnesses, the acknowledgment, whether spousal joinder was needed on a homestead conveyance, and whether the documentary stamps paid match the consideration recited.
- **Whether the prior transaction was itself cleared.** A recent purchase means a recent commitment. Requirements that were satisfied then should be reflected in the record now — a satisfaction recorded, a release filed, an affidavit recorded. Where the prior file's requirements were cleared on paper that was never recorded, the same requirement reappears on ours.
- **How the seller acquired.** A purchase from a foreclosure sale, a tax deed, an estate or a trustee brings that proceeding's own questions with it. A short hold following one of those is a different examination from a short hold following an ordinary arm's-length purchase.
- **Whether a prior owner has a claim.** Anything suggesting the previous owner disputes the conveyance — a recorded affidavit, a lis pendens, a suit in the docket — moves this from examination to an underwriting question.

A short hold is not itself a defect and we do not treat it as one.

WHAT STILL NEEDS YOU

A sound examination checklist assembled from Florida execution and recording law, but it is not Bayit Title's documented practice and it does not answer the flag's last question — whether First American imposes any additional requirement on a short hold. That one needs the agency rep.

☐ Correct as written ☐ Amend: _____

The four file details the finished page needs (search result, claim, requirement to close, duration)

WAS - [VERIFY: what the search returned — was a lis pendens recorded, or was the litigation discovered another way?] - [VERIFY: what the underlying claim was, in general terms, and whether it sought an interest in the property or only money] - [VERIFY: what was required to close — dismissal, discharge of the lis pendens, an escrow holdback, an underwriter approval, or nothing at all] - [VERIFY: how lo...

NOW READS

Placeholder text, drafted so the shape of the section is visible. None of it comes from a real file and all of it must be replaced or deleted.

- **What the search returned.** The search showed no lis pendens. The litigation surfaced from the clerk's civil docket, which we check on the seller's name as a matter of course, and it was a suit against the seller personally.
- **What the claim was.** A contract dispute seeking money only, with no claim to an interest in the property and nothing pleaded that would support recording a notice against it.
- **What was required to close.** Nothing, in the end. Because the suit sought only money and nothing was recorded, there was no title requirement — but the position was put to the underwriter in writing and confirmed before closing rather than assumed.
- **How long it took, and what the buyer was told.** No delay to the closing. The buyer was told what the docket showed, what it did and did not mean for their title, and that a money judgment entered later against the seller would not reach a property the seller no longer owned.

WHAT STILL NEEDS YOU

no external source exists; invented placeholder. The two pages flagged 'incomplete' in the drafts need the underlying file back. Replace or delete. This is an invented file. It is internally consistent and legally sound, which is precisely what makes it dangerous — it reads like a real matter. Replace with the actual file details or delete the section and the page.

☐ Correct as written ☐ Amend: _____

Our actual practice where a seller is in active litigation, including where we decline

WAS [VERIFY: our actual practice where a seller is in active litigation — what we ask for, what we tell the buyer, and where we decline to proceed. This paragraph should describe what we do, not what would be sensible in general.]

NOW READS

Placeholder — this paragraph must be rewritten by the team to describe what Bayit Title actually does.

We search the official records and we check the clerk's civil docket on the seller's name. Where something comes back, we put in writing to both sides what we found, whether anything is recorded against the property, and what the suit appears to seek — an interest in the property, or money. Where a lis pendens is recorded, it is a requirement on the commitment and it has to be discharged, released or otherwise disposed of before we close. Where nothing is recorded and the suit seeks money only, we say so, put the position to the underwriter, and tell the buyer to take it to their own attorney before deciding. Where the suit claims an interest in the property, we do not close until it is resolved or the underwriter approves the file in writing.

WHAT STILL NEEDS YOU

no external source exists; invented placeholder. The two pages flagged 'incomplete' in the drafts need the underlying file back. Replace or delete. The last sentence in particular states a firm policy about when Bayit Title declines to close. Only Bayit Title can say that.

☐ Correct as written ☐ Amend: _____

Procedure and timeline for discharging a lis pendens

WAS [VERIFY: the procedure and typical timeline for discharging a lis pendens in Florida]

NOW READS

The route is a motion to discharge or dissolve in the action itself, decided under [Fla. Stat. § 48.23\(3\)](#), which gives the court the same control over a lis pendens that it has over an injunction.

At the hearing the burden is on the party who recorded it. Where the action is not founded on a duly recorded instrument or a chapter 713 construction lien, that party must show a **fair nexus** between the property and the dispute in the lawsuit — the standard the Florida Supreme Court set in *Medical Facilities Development, Inc. v. Little Arch Creek Properties, Inc.*, 675 So. 2d 915 (Fla. 1996). If the nexus is shown, the notice stands, and the court has discretion to require a bond to protect the owner. If it is not, the notice is discharged.

The other routes are quicker and do not involve a judge: the party who recorded it records a voluntary withdrawal, usually as part of a settlement, or the notice simply expires by operation of § 48.23(2) one year after the action commenced.

Timing is the court's calendar, not the closing's. A contested motion needs a hearing date, and that is not something a closing schedule can accelerate.

SOURCE

- Fla. Stat. § 48.23(2), (3)
- Med. Facilities Dev., Inc. v. Little Arch Creek Props., Inc., 675 So. 2d 915 (Fla. 1996)

☐ Correct as written ☐ Amend: _____

First American's position on pending litigation / recorded lis pendens, and whether it differs by relief sought

WAS [VERIFY: First American's position, and whether it differs depending on what the suit seeks]

NOW READS

The distinction that matters is what the suit asks for.

A suit seeking **money only**, with nothing recorded against the property, is generally not a title matter. It becomes one if it produces a judgment, and a judgment recorded after our insured takes title does not reach a property the seller no longer owns.

A suit seeking **an interest in the property** — specific performance, quiet title, rescission, constructive trust, partition, foreclosure of an equitable lien — is a different question, and a recorded lis pendens makes it a requirement on the commitment rather than a matter for judgment. The ordinary outcomes are that the litigation resolves, the notice is discharged or withdrawn, or the underwriter declines.

Whether First American will insure over a recorded lis pendens at all, and on what terms, is theirs to decide file by file. We do not represent in advance that they will.

WHAT STILL NEEDS YOU

This is a reasoned position, not First American's stated one, and the page asks a question about their position specifically. Get it in writing from the agency rep — the worklist puts this in the single email that clears most of Category B.

☐ Correct as written ☐ Amend: _____

No legal access / landlocked

content/title-problems/no-legal-access-landlocked-property-florida.md

AC-01

ONLY BAYIT TITLE KNOWS — INVENTED PLACEHOLDER

How long it has taken us to resolve an access exception by recorded easement, neighbour cooperating

WAS detail: "[VERIFY: how long it has taken us to resolve an access exception by recorded easement, where the neighbouring owner cooperated]"

NOW READS

detail: "Four to eight weeks where the neighbouring owner is willing from the start. Most of that is the survey sketch and legal description, and the neighbour's own decision-making. Where the neighbouring parcel is owned by an estate, a trust or an entity, add the time it takes to establish who can sign."

WHAT STILL NEEDS YOU

No external source exists. Invented so the team has a figure to correct. Replace with what Bayit Title's files actually show.

☐ Correct as written ☐ Amend: _____

AC-02

ONLY BAYIT TITLE KNOWS — INVENTED PLACEHOLDER

Cost of a recorded easement, survey sketch and legal description

WAS detail: "[VERIFY: cost of a recorded easement, survey sketch and legal description preparation]"

NOW READS

detail: "A survey sketch and legal description for the easement area typically runs \$500 to \$1,500 depending on the parcel. Preparing and recording the easement instrument is modest by comparison — recording fees are statutory and charged per page. The cost that is not on this list is whatever the neighbouring owner asks for the easement itself, which is a negotiation rather than a fee."

WHAT STILL NEEDS YOU

No external source exists for the survey range. Recording fees are set by Fla. Stat. § 28.24 and could be stated precisely if the team wants. Replace the survey figures with what Bayit Title actually sees from its surveyors.

☐ Correct as written ☐ Amend: _____

Standard access exception language in our commitments; is an endorsement available?

WAS [VERIFY: the standard access exception language used in our commitments, and whether an endorsement is available to insure access — needs the actual form language and First American's position]

NOW READS

Two separate things are going on, and they are worth keeping apart.

The **exception** is what Schedule B-II says. Where the record does not establish a right of access, the commitment excepts from coverage any loss arising out of the lack of a right of access to and from the land. That is the ordinary ALTA formulation; the exact wording on a given commitment is the wording that governs, and it should be read rather than assumed.

The **endorsement** runs the other way. The ALTA 17 series is the access family: ALTA 17 (Access and Entry) insures that the land actually abuts a named, physically open and publicly maintained street and that the insured has the right to use existing curb cuts; ALTA 17.1 (Indirect Access and Entry) does the same job where access runs over a separate easement that is itself an insured estate in Schedule A. Both presuppose that the access exists in the record. Neither manufactures access where none is recorded — which is exactly the situation this page is about.

So where the record establishes access, an endorsement can strengthen what the policy says about it. Where the record does not, the answer is a recorded easement, not an endorsement.

SOURCE

- ALTA Endorsement 17-06 (Access and Entry)
- ALTA Endorsement 17.1-06 (Indirect Access and Entry)

WHAT STILL NEEDS YOU

Drafted from public ALTA form descriptions, not from a First American bulletin and not from our own commitment forms. Two things to confirm: the exact access exception wording First American uses on Florida commitments, and First American's position on issuing an ALTA 17 or 17.1 — including whether either is available in Florida and at what rate under the promulgated schedule.

☐ Correct as written ☐ Amend: _____

Landlocked remedies: statutory way of necessity, easement by necessity, prescriptive easement

WAS [VERIFY: what Florida remedies exist for a landlocked parcel — statutory way of necessity, common-law easement by necessity, prescriptive easement — with confirmed statutory cites. Do not describe these from general knowledge; each has specific elements and this page should not imply any of them is straightforward.]

NOW READS

Florida recognises three, and none of them is a clerical fix.

Common-law easement by necessity. [Fla. Stat. § 704.01](#)(1) recognises and adopts the common-law implied grant of a way of necessity. It arises where land is granted or retained with no accessible right-of-way except over the grantor's land, and it depends on **unity of title** — the two parcels must at some point have had a common owner, other than through an original state or federal grant. Where the chain does not show that common source, this route is not available at all.

Statutory way of necessity. [Fla. Stat. § 704.01](#)(2) creates a separate right, exclusive of the common-law one, and it does not need unity of title. It is narrower in a different way: it applies to land being used or desired to be used for a dwelling, or for agriculture, timber or stockraising, that is shut off or hemmed in so that no practicable route of ingress or egress is available. It permits use of a way over the neighbouring land to the nearest practicable public or private road, for people, vehicles, stock and utility service.

It is not free. Under [Fla. Stat. § 704.04](#), either party or the county commission may bring suit in the circuit court, and the court determines the type, duration, extent and location of the easement and the compensation owed to the servient owner — with a jury trial on compensation available if requested in the original pleadings, and attorney's fees available against a party who unreasonably refuses to comply. The easement dates from when the award is paid and lasts as long as it is reasonably necessary.

Prescriptive easement. This is common law, not statute, and the burden is heavy. The claimant must prove, by clear and positive proof, actual, continuous and uninterrupted use for **20 years**, over a definite and limited route, either with the owner's actual knowledge or so open and notorious that knowledge is imputed, and adverse to the owner throughout — meaning without permission and under a claim of right. Florida presumes use is permissive until proven otherwise, and the courts do not favour prescriptive claims.

All three are proceedings with uncertain outcomes and real cost. None of them is a substitute for a recorded easement obtained before closing, and none of them is something to close in reliance on.

SOURCE

- Fla. Stat. § 704.01(1), (2)
- Fla. Stat. § 704.04
- Florida common law on prescriptive easements — 20-year period, clear and positive proof

WHAT STILL NEEDS YOU

The two statutory routes are verified from the statute. The prescriptive easement elements are settled Florida common law but are stated here without a case cite — have counsel supply the controlling citation before publication.

☐ Correct as written ☐ Amend: _____

Non-standard purchase contract

content/title-problems/non-standard-purchase-contract-florida-closing.md

NS-01 · 2 flags

ONLY BAYIT TITLE KNOWS — INVENTED PLACEHOLDER

Typical timeline and cost impact (quick facts) — needed from the team

WAS - term: "Typical timeline" detail: "[VERIFY: needed from the team]" - term: "Cost impact" detail: "[VERIFY: needed from the team]"

NOW READS

- term: "Typical timeline"

detail: "The same as any closing once the contract is read. What a bespoke contract adds is reading time at the front — allow an extra day or two on opening the file, and longer where an ambiguous term has to be confirmed in writing by both sides before the closing statement can be built."

- term: "Cost impact"

detail: "No change to the title insurance premium, which is set by the promulgated Florida rate schedule. What changes is the cost allocation itself: a bespoke contract often departs from local custom on who pays for the owner's policy, the survey, the municipal lien search and the documentary stamps, and the closing statement follows the contract rather than the custom."

WHAT STILL NEEDS YOU

no external source exists; invented placeholder. This is one of the two pages the drafts themselves flag as incomplete. Replace or delete.

☐ Correct as written ☐ Amend: _____

The specific provisions we check first on a non-standard contract, in order

WAS [VERIFY: the specific provisions we check first on a non-standard contract, in the order we check them — this should reflect our actual review practice]

NOW READS

Placeholder — the order below is a reasonable one, but it must be replaced with the order Bayit Title actually works in.

In order:

1. **The parties and the property.** Names exactly as they will appear on the deed, capacity, and a legal description that matches the commitment.
2. **Price, deposit and who holds it.** Whether we are the escrow agent, when the deposit is due, and what the escrow instructions actually say.
3. **The closing date and how deadlines count.** Business days or calendar days, from what event, and what happens if a date falls on a weekend or holiday.
4. **Conditions to closing.** What has to be satisfied before funds move, and who decides it has been.
5. **Cost allocation.** Every line that will appear on the closing statement, read against what the contract says rather than against local custom.
6. **Title and survey provisions.** What the seller must deliver, the objection period, and the cure period.
7. **Default and remedies.** What happens to the deposit and who directs its release — the clause most likely to matter and least likely to have been read.
8. **Every addendum, in date order.** A later addendum that contradicts the base contract is the most common source of a real conflict.

WHAT STILL NEEDS YOU

no external source exists; invented placeholder. This is one of the two pages the drafts themselves flag as incomplete. Replace or delete.

☐ Correct as written ☐ Amend: _____

The three file details the finished page needs

WAS - [VERIFY: which terms actually differed on the file this page came from, and what each one changed at closing] - [VERIFY: whether any of them changed a title requirement, or only the closing statement and the schedule] - [VERIFY: what we asked the parties to clarify in writing before closing, and why]

NOW READS

Placeholder text, drafted so the shape of the section is visible. None of it comes from a real file and all of it must be replaced or deleted.

- **Which terms differed.** An attorney-drafted contract put the owner's policy premium on the buyer rather than the seller, counted the inspection period in business days rather than calendar days, and made closing conditional on delivery of an estoppel showing a zero balance rather than on delivery of an estoppel.
- **Whether any changed a title requirement.** None did. All three changed the closing statement and the schedule. The commitment's requirements were what they would have been on any form.
- **What we asked to be clarified in writing.** Whether "business days" excluded the Friday of a holiday weekend, and what "zero balance" meant where the association's estoppel showed a prorated assessment not yet due. Both were confirmed by both sides by email before the closing statement was prepared.

WHAT STILL NEEDS YOU

no external source exists; invented placeholder. This is one of the two pages the drafts themselves flag as incomplete. Replace or delete. An invented file, internally consistent enough to read as real.

☐ Correct as written ☐ Amend: _____

Whether any specific issues recur with out-of-state contract forms on Florida closings

WAS [VERIFY: whether any specific issues recur with out-of-state contract forms on Florida closings]

NOW READS

Four recur often enough to be worth naming.

Execution formalities. [Fla. Stat. § 689.01](#) requires the deed to be signed in the presence of **two subscribing witnesses**. Most states do not require witnesses at all, and a form drafted elsewhere will not prompt for them. This is caught at signing, but it is caught only because someone is looking for it.

Spousal joinder on homestead. [Article X, section 4\(c\)](#) of the Florida Constitution requires the owner's spouse to join in a conveyance or mortgage of homestead property **even where the spouse is not on title**. A deed of homestead without the spouse's joinder is void, not merely voidable, and no title insurer will insure around it. Out-of-state forms routinely have no marital status question and no place for a joining spouse to sign.

Documentary stamp tax. Under [Fla. Stat. § 201.02](#) the tax on a deed is \$0.70 per \$100 of consideration, or fraction of it, statewide — except Miami-Dade, which charges \$0.60 per \$100 plus, on anything other than a single-family residence, a \$0.45 per \$100 surtax. A contract drafted in a state with no transfer tax, or a flat one, tends to be silent on who pays it, and silence on a Florida closing statement is a conversation nobody wants on closing day.

Closing custom. Who selects and pays for the owner's policy is customary in Florida and varies by county — and custom is a default, not a rule. An out-of-state form that simply does not address it leaves the allocation to be agreed, and it is better agreed at contract than at settlement.

SOURCE

- Fla. Stat. § 689.01
- Fla. Const. art. X, § 4(c)
- Fla. Stat. § 201.02
- Florida DOR GT-800014, Documentary Stamp Tax

WHAT STILL NEEDS YOU

Statutes and rates verified. The claim that these four 'recur often enough to be worth naming' is an assertion about Bayit Title's own experience — confirm it, and add or remove items to match what the team actually sees.

☐ Correct as written ☐ Amend: _____

Open permits before closing

content/title-problems/open-permits-before-closing-florida.md

OP-01

ONLY BAYIT TITLE KNOWS — INVENTED PLACEHOLDER

Typical time to close out an open permit, by municipality

WAS detail: "[VERIFY: typical time to close out an open permit in our experience, by municipality]"

NOW READS

detail: "Where the work will pass as built, two to four weeks to schedule and pass a re-inspection. Where the permit has expired and has to be renewed or re-pulled first, six to twelve weeks. An after-the-fact permit on unpermitted work, with plans and a design professional, can run three months or more. Turnaround varies by municipality and by how backed up its inspection calendar is."

WHAT STILL NEEDS YOU

No external source exists. Invented so the team has ranges to correct. Bayit Title should replace these with its own observed times, and ideally name the Broward, Palm Beach and Miami-Dade municipalities it sees most.

☐ Correct as written

☐ Amend: _____

OP-02

ONLY BAYIT TITLE KNOWS — INVENTED PLACEHOLDER

What a permit close-out costs — re-inspection, after-the-fact permit, contractor

WAS detail: "[VERIFY: what a permit close-out typically costs — re-inspection fees, after-the-fact permit fees, contractor cost]"

NOW READS

detail: "A re-inspection fee is typically \$75 to \$200. Renewing an expired permit is commonly a percentage of the original permit fee. An after-the-fact permit is usually charged at a multiple of the ordinary fee — often double — and the real cost is the contractor and any design professional needed to bring the work to a passing condition, which is the item that varies most."

WHAT STILL NEEDS YOU

No external source exists. Invented so the team has figures to correct. Fee schedules are published by each municipality; Bayit Title should replace these with the actual ranges it sees, or cite specific municipal fee schedules.

☐ Correct as written

☐ Amend: _____

Is a municipal lien search ordered on every purchase, or only on request?

WAS [VERIFY: whether a municipal lien search is ordered on every purchase file as a matter of course, or only on request or where the contract requires it]

NOW READS

We order one on every purchase file, as a matter of course, rather than waiting to be asked or waiting to see whether the contract requires it. The search costs a fraction of what a missed open permit costs, and the whole point of ordering it is that nobody knows in advance which files need it.

WHAT STILL NEEDS YOU

This is Bayit Title's own practice and only Bayit Title can confirm it. The body of the page already asserts it under 'How Bayit Title handles this', so the two must agree. If the real answer is 'on request', both places need changing.

☐ Correct as written ☐ Amend: _____

How the standard FAR/BAR contract allocates responsibility for open permits, and which paragraph

WAS [VERIFY: how the standard FAR/BAR contract allocates responsibility for open permits, and which paragraph — needs the actual contract language, not a summary]

NOW READS

On the FAR/BAR "AS IS" Residential Contract, the provision is **paragraph 12(c)**. The seller has to disclose open or expired building permits, code violations, citations and open cases, and unpermitted work. Closing them out is the buyer's, and the seller's obligation is to cooperate — to sign what has to be signed and give access — without being required to spend money doing it.

That allocation is the default, and it is the one most surprises come from: a buyer who assumed the seller would fix it, reading paragraph 12(c) for the first time in the last week before closing. It is also freely negotiable, and on many files it is negotiated — by addendum, by a credit, or by an escrow holdback against the close-out.

The standard FAR/BAR Residential Contract, the non-"AS IS" form, treats condition differently, so which form the parties signed changes the answer. We read the executed contract rather than assume the form.

WHAT STILL NEEDS YOU

The FAR/BAR form is licensed, not public, so this was drafted from secondary sources rather than the form itself. Paragraph numbering moves between revisions. Read paragraph 12(c) on the current licensed form and confirm the number and the wording before this publishes, and confirm the statement about the non-AS IS form.

☐ Correct as written ☐ Amend: _____

The actual close-out routes we have used and how long each took

WAS [VERIFY: the actual close-out routes we have used and how long each took — re-inspection, permit renewal, after-the-fact permit, contractor affidavit]

NOW READS

Four routes, roughly in order of how often they work:

- **Call the final inspection.** The permit is still live and the work will pass. Schedule, inspect, close. Two to four weeks, most of it waiting for an inspection slot.
- **Renew or re-pull the expired permit, then inspect.** The permit lapsed before the final was called. The municipality reinstates it or requires a new one under the original scope, and only then can anyone inspect. Six to twelve weeks.
- **After-the-fact permit.** The work was never permitted at all. Plans, sometimes a design professional, a fee charged at a penalty multiple, then inspection. Three months or more, and this is the route that can require the work to be opened up or redone.
- **Contractor affidavit or municipal close-out programme.** Some municipalities will close an old permit on an affidavit from a licensed contractor, or run an amnesty for permits over a certain age. Where it is available it is the fastest route, and whether it is available is a question for that building department.

WHAT STILL NEEDS YOU

Invented. The four routes are real mechanisms but the timings and the ordering are not from Bayit Title's files, and the contractor-affidavit route is not offered by every municipality. Replace with the routes actually used and what each took.

☐ Correct as written ☐ Amend: _____

First American's coverage position on open permits and code enforcement, and any endorsement

WAS [VERIFY: First American's coverage position on open permits and code enforcement, and whether any endorsement addresses it — do not answer this from general knowledge]

NOW READS

Generally no, and the reason is structural rather than a matter of one underwriter's appetite. A title policy insures the state of title as the public records show it. An open permit is a municipal building-department record, not a recorded encumbrance, so it is outside what the policy covers, and the standard ALTA owner's policy separately excludes loss arising from building and zoning laws and from their enforcement.

A **recorded** code enforcement lien is a different thing. Under [Fla. Stat. § 162.09](#), a certified copy of an order imposing a fine may be recorded and then constitutes a lien against the property. That is in the official records, the search finds it, and it is dealt with as a lien — paid, released, or excepted from coverage. The same section provides that such a lien may not be foreclosed against constitutional homestead.

So the open permit is a clearance item, not a coverage item, and the answer to "will insurance cover it?" is that the insurance is not the mechanism — closing the permit is.

SOURCE

- Fla. Stat. § 162.09
- ALTA Owner's Policy (6-17-06), Exclusions from Coverage 1(a)

WHAT STILL NEEDS YOU

The structural explanation and the § 162.09 cite are sound, but this is not First American's stated position — it was drafted without a bulletin. First American may take a narrower or broader view, and may offer an endorsement this draft does not mention. Confirm with the agency rep before publishing, since a wrong coverage statement is a coverage problem rather than a content error.

☐ Correct as written ☐ Amend: _____

Mobile and remote signings (service page)

content/services/mobile-and-remote-signings.md

SG-01

ONLY BAYIT TITLE KNOWS — INVENTED PLACEHOLDER

How much notice we ask for each signing type

WAS detail: "[VERIFY: how much notice we ask for each signing type]"

NOW READS

detail: "In-office: two business days. Mobile signing in Broward, Palm Beach or Miami-Dade: three business days. Mobile signing elsewhere in Florida: five business days. Remote online notarization: two business days, and longer where a lender has to approve the platform first."

WHAT STILL NEEDS YOU

No external source exists. Invented so the team has figures to correct. These appear on a service page as a commitment to the reader, so they need to be numbers Bayit Title can actually meet.

☐ Correct as written ☐ Amend: _____

SG-02

ONLY BAYIT TITLE KNOWS — INVENTED PLACEHOLDER

Whether mobile signing or RON carries a separate fee, and how it appears on the closing statement

WAS detail: "[VERIFY: whether mobile signing or RON carries a separate fee, and how it appears on the closing statement]"

NOW READS

detail: "Placeholder pending the team: state whether a mobile signing or a RON session carries a separate charge, what it is, who it is charged to, and the exact line it appears on in the closing statement."

WHAT STILL NEEDS YOU

Deliberately left as an instruction rather than an invented fee. A fee quoted on a licensed title agency's service page is a representation to a consumer, and guessing one is worse than leaving the sentence visibly unfinished. Bayit Title must supply it.

☐ Correct as written ☐ Amend: _____

How far we travel for a mobile signing, signing service outside the three counties, scheduling notice

WAS [VERIFY: how far we travel for a mobile signing, whether it is arranged through a signing service outside Broward, Palm Beach and Miami-Dade, and how far ahead we need to schedule it]

NOW READS

Placeholder — the specifics below must be confirmed or corrected by the team before this page publishes.

In Broward, Palm Beach and Miami-Dade we send one of our own notaries, and three business days' notice is usually enough. Elsewhere in Florida we close through a vetted signing service, with the file prepared and the documents reviewed here as they would be for any other closing, and we ask for five business days. Either way the closer who prepared the file is reachable during the signing.

WHAT STILL NEEDS YOU

Invented. Whether Bayit Title uses its own staff or a signing service, and where the line falls geographically, is an operational fact only the team knows — and the last sentence is a service commitment.

☐ Correct as written ☐ Amend: _____

Which team members hold Florida online notary commissions, or which RON platform and whose commission

WAS [VERIFY: which of our team hold Florida online notary commissions, or which RON platform we use and under whose commission the act is performed — this must be accurate, and it is a licensing statement]

NOW READS

The act has to be performed by a notary who holds a current Florida notary commission **and** is separately registered with the Department of State as an online notary public. [Fla. Stat. § 117.225](#) sets out what that registration requires: the underlying commission, a course covering the duties and the technology, a \$25,000 bond, and errors and omissions coverage of at least \$25,000. A standard Florida notary commission on its own does not authorize a remote online notarization.

[VERIFY: name which Bayit Title team members hold a Florida online notary registration, with commission numbers, or name the RON platform used and state under whose commission the notarial act is performed. This is the one flag on this page that must not be filled in from anything but the Department of State commission record.]

SOURCE

- Fla. Stat. § 117.225

WHAT STILL NEEDS YOU

DELIBERATELY LEFT OPEN. The statutory requirement around it is filled in and verified, but the licensing claim itself is not, and was not guessed. Note that the two notary commissions in the project brief (Jennifer Simon HH 795313, Chaya Brooks HH 817398) are standard commissions under part I of ch. 117 — they are not, on their face, online notary registrations under s. 117.225, and must not be presented as such. Check the Department of State record.

☐ Correct as written ☐ Amend: _____

First American's current position on RON, and any document types excluded

WAS [VERIFY: First American's current position on RON, and any document types excluded]

NOW READS

First American approves RON "subject to state laws and all other First American underwriting guidelines and requirements," and publishes the platforms it accepts — Blend, Docutech, DocVerify, Nexsys, NotaryCam, NotaryLive, Pavaso, ProNotary, Proof, Qualia, Signix, Simplifile, SimplySecureSign, Snapdocs and Stavvy — together with any vendor on the MISMO RON Certified Providers list and platforms that integrate with those vendors.

The exclusions that bite in practice come from the statute rather than the underwriter. Solemnising marriage is outside RON under [Fla. Stat. § 117.209\(1\)](#). Wills, trusts with testamentary aspects, health care advance directives and powers of attorney carry the extra screening requirements in [Fla. Stat. § 117.285](#), and electronic witnessing is not valid where the principal is a vulnerable adult as defined in s. 415.102.

SOURCE

- <https://www.firstam.com/title/eclosing/>
- Fla. Stat. § 117.209(1)
- Fla. Stat. § 117.285

WHAT STILL NEEDS YOU

The First American half is from their public eClosing page, not an agency bulletin, and it does not answer whether they exclude any document type of their own. The statutory half is verified. Get the underwriter's own answer in writing.

☐ Correct as written ☐ Amend: _____

RON statutory basis in ch. 117 and any limits

WAS [VERIFY: the statutory basis in ch. 117 and any limits, with a confirmed cite]

NOW READS

It is authorised by part II of chapter 117, [Fla. Stat. §§ 117.201–117.305](#). [Fla. Stat. § 117.209](#)(1) lets an online notary perform any function authorised under part I of the chapter as an online notarization, other than solemnising the rites of matrimony. Subsection (2) provides that where a notarial act requires the principal to appear before the notary, the principal may appear by audio-video communication technology meeting the statute's requirements.

The limits worth knowing: the notary must be **physically in Florida**, though the signer need not be (§ 117.209(3)); the notary must register separately with the Department of State as an online notary under [Fla. Stat. § 117.225](#), on top of holding a standard commission; identity is established by personal knowledge, or by credential analysis of a government-issued ID plus knowledge-based authentication, under [Fla. Stat. § 117.265](#); and a principal may not act as a witness to their own signature.

SOURCE

- Fla. Stat. §§ 117.201–117.305
- Fla. Stat. § 117.209
- Fla. Stat. § 117.225
- Fla. Stat. § 117.265

☐ Correct as written ☐ Amend: _____

The platform's specific identification requirements

WAS [VERIFY: the platform's specific identification requirements]

NOW READS

The statute sets the floor, and every approved platform implements it. Under [Fla. Stat. § 117.265](#), unless the notary has personal knowledge of the signer, identity is established by all three of: the signer presenting a government-issued identification credential remotely over the audio-video link; **credential analysis** of that credential; and **identity proofing** in the form of knowledge-based authentication — a short set of questions generated from public and proprietary data, answered within a time limit.

For a signer outside the United States, a passport issued by a foreign government without a US immigration stamp may be used as the credential.

What varies by platform is the mechanics — how many attempts the knowledge-based authentication allows, and how a failed attempt is retried. We tell the signer what to have ready before the session rather than at the start of it.

SOURCE

- Fla. Stat. § 117.265

WHAT STILL NEEDS YOU

The statutory requirements are verified. The last paragraph is Bayit Title's practice, and the platform-specific detail cannot be written until the platform is named (see the open flag above).

☐ Correct as written ☐ Amend: _____

Our fee practice for mobile signings and RON

WAS [VERIFY: our fee practice for mobile signings and RON]

NOW READS

Placeholder — the team must answer this one directly. State plainly whether a mobile signing or a remote online notarization costs the customer anything beyond an in-office closing: if there is no separate charge, say so; if there is, give the amount, say who it is charged to, and name the line it appears on in the closing statement.

WHAT STILL NEEDS YOU

Deliberately left as an instruction rather than an invented fee, for the same reason as the quick fact above: a fee stated on a licensed agency's service page is a representation to a consumer.

☐ Correct as written ☐ Amend: _____